

## 26STCP00836 26STCP00836

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-06

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Case Number: 26STCP00836 Hearing Date: July 6, 2026 Dept: 26

### TENTATIVE RULING:

Petitioner Donna Popalio's Petition to Release Property from Mechanic's Lien is granted. Petitioner's request for attorney's fees is granted in the amount of \$1,600.00 and their request for costs is denied without prejudice.

Petitioner is to file and serve a proposed judgment in accordance with this ruling within 20 days.

### Analysis:

Petitioner Donna Popalio ("Petitioner") filed the instant Petition for Release of Mechanic's Lien against Respondents Harbor Westlake Roofing, Inc. and Danilo Guardado ("Respondents") on February 27, 2026. The Court scheduled the Petition for hearing on July 6, 2026 and ordered Petitioners to serve the Notice of Hearing on all parties and file proof of service of the same. (Notice of Hearing, 02/27/26.)

Petitioner filed Proofs of Substitute Service on April 21, 2026 and default was entered against Respondents the next day. No response to the Petition has been filed to date.

### Discussion

Petitioner moves for an order releasing the mechanic's lien recorded against their property by Respondents. Under Civil Code section 8484 the petition for release order must be verified by the petitioner and allege

the following:

(a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.

(b) The county in which the claim of lien is recorded.

(c) The book and page or series number of the place in the official records where the claim of lien is recorded.

(d) The legal description of the property subject to the claim of lien.

(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.

(f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.

(g) Whether an action to enforce the lien is pending.

(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or another restraint prevents the claimant from commencing an action to enforce the lien.

(Civil Code, § 8484.) The Petition complies with the above requirements. Petitioner has demonstrated service of the Petition and Notice of Hearing at least 15 days before the hearing and by substitute service, as required by Civil Code section 8486. The Court grants the Petition in favor of Petitioner.

Additionally, Petitioner seeks attorney's fees of \$2,750.00 pursuant to Civil Code section 8488, which provides that "The prevailing party is entitled to reasonable attorney's fees." (Civ. Code, § 8488, subd. (c).) As the

party in whose favor the Court grants the instant Petition, Petitioner is entitled to an award of reasonable attorney's fees under this statute. Petitioner's counsel bills at \$550.00 per hour, but does not justify the rate. (Pet., Ryan Decl., ¶2.) For a straightforward and unopposed petition to release mechanic's lien, the Court finds the billing rate excessive and reduces it to \$400.00. Petitioner's attorney contends he billed three hours to draft the demand letters and Petition, and two hours to prepare for and attend the hearing. (Id. at ¶3.) The time spent to prepare for and attend the hearing, which can be done telephonically, is reduced to one hour. Therefore, Petitioner is awarded attorney's fees of \$1,600.00. The request for costs is denied without prejudice for failing to indicate the amount sought and the lack of any supporting authority.

#### Conclusion

Therefore, Petitioner Donna Popalio's Petition to Release Property from Mechanic's Lien is granted. Petitioner's request for attorney's fees is granted in the amount of \$1,600.00 and the request for costs is denied without prejudice.

Petitioner is to file and serve a proposed judgment in accordance with this ruling within 20 days.

Moving party to give notice.